

Retaliation

It is against the Law for anyone—your employer, your landlord, or anyone else to whom the New York City Human Rights Law applies—to retaliate against you because you:

- Opposed an unlawful discriminatory practice
- Made a charge or filed a complaint of discrimination with the NYC Commission on Human Rights, your employer, or any other agency
- Testified, assisted, or participated in an investigation, proceeding, or hearing relating to something prohibited by the NYC Human Rights Law

The Law protects you against retaliation as long as you have a reasonable good faith belief that the persons' conduct is illegal, even if it turns out that you were mistaken.

Employment Protections under the Human Rights Law

The New York City Human Rights Law prohibits discrimination in:

- Hiring, including in job postings and interviews
- Salary and benefits
- Performance evaluations
- Promotions and demotions
- Discipline and firing
- Any decisions that affect the terms and conditions of employment

Reasonable Accommodations in Employment

In employment, a reasonable accommodation is a change made to the work schedule or duties of an employee to accommodate their specific needs and allow them to do their job. An employer must provide reasonable accommodations unless doing so would create an undue hardship for the employer, for the following protected classes:

- Disability: Employers must make reasonable accommodations to meet the needs of individuals who have a physical, medical, mental or psychological impairment, or a history or record of such impairment.
- Pregnancy, childbirth or related medical condition: Employers must make reasonable accommodations to individuals based on their pregnancy, childbirth, recovery from childbirth, or medical condition related to their pregnancy or childbirth.
- Religious observance: Employers must make reasonable accommodations for the religious needs of employees and job applicants, including the observance of the Sabbath and other holy days.
- Status as victim of domestic violence, sexual violence, or stalking: Employers must make reasonable accommodations to the needs of individuals who are or have been subject to certain acts or threats of violence.

- Lactation: Employers are required to provide employees with lactation accommodations, including a lactation room where employees can pump/express breast milk, and reasonable time to pump/express breast milk.

Housing protections under the Human Rights Law

The New York City Human Rights Law prohibits discrimination in:

- Leasing and sales, including in advertisements and interviews
- Rental and sale, including the terms, conditions, or privileges thereof
- Steering people toward or away from certain neighborhoods
- Mortgages and loans, including the terms
- Any decisions that affect the terms and conditions of your housing

Reasonable Accommodations in Housing

In housing, a reasonable accommodation is a change made to the environment, terms, or privileges of a housing accommodation to accommodate an actual or potential resident's disability. A housing provider must provide and pay for reasonable accommodations unless doing so would create an undue hardship.

Public accommodations protections under the Human Rights Law

The New York City Human Rights Law prohibits discrimination in public accommodations, such as restaurants, stores, hospitals, museums, and theaters, among others.

Reasonable Accommodations in Public Places

A reasonable accommodation is a change made to the environment, terms, or privileges of a public accommodation to accommodate a patron or customer with a disability. A provider of public accommodations must provide and pay for reasonable accommodations unless doing so would create an undue hardship.